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County: los-angeles

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Case Number: 22PSCV00201 Hearing Date: June 29, 2026 Dept: G

Plaintiff Thuy Monge's Motion to Compel

Further Responses to Form Interrogatories – Employment (Set One), Interrogatory

No. 216.1

Respondent: Defendant Hacienda La Puente

Unified School District

Plaintiffs Thuy Monge, Jamue Aakhus, Alice

Acevedo, Ida Aguayo, Jose Araiza, Marisol Arevalo, Diana Ayala, Maechelle

Brown, Noemi Covarrubias, Desteny Flores, Elizabeth Hernandez, Heidi Holguin,

Melissa Lomenzo, Vanessa Lozano, Dora Luna, Melissa Lucht, Romelia Mancillas,

Benny Morales, Miranda Noriega, Melissa Ramon, Ashley Smith, Matthew Solorzano,

Kerry Stavert Wooten, Brittney Strand, Marysol Thomas, and Sean Van Gundy's

Motion to Compel Further Responses to Form Interrogatories – Employment (Set

One), Interrogatory No. 216.1

Respondent: Defendant Hacienda La Puente

Unified School District

TENTATIVE

RULING

Plaintiff

Thuy Monge's Motion to Compel Further Responses to Form Interrogatories –

Employment (Set One), Interrogatory No. 216.1 is DENIED.

Plaintiffs

Jamue Aakhus, Alice Acevedo, Ida Aguayo, Jose Araiza, Marisol Arevalo, Diana

Ayala, Maechelle Brown, Noemi Covarrubias, Desteny Flores, Elizabeth Hernandez, Heidi Holguin, Melissa Lomenzo, Vanessa Lozano, Dora Luna, Melissa Lucht, Romelia Mancillas, Benny Morales, Miranda Noriega, Melissa Ramon, Ashley Smith, Matthew Solorzano, Kerry Stavert Wooten, Brittney Strand, Marysol Thomas, and Sean Van Gundy's Motion to Compel Further Responses to Form Interrogatories – Employment (Set One), Interrogatory No. 216.1 is DENIED.

BACKGROUND

This

is an employment action. Defendant

Hacienda La Puente Unified School District (the District) allegedly employed plaintiffs Thuy Monge, Jamue Aakhus, Alice Acevedo, Ida Aguayo, Jose Araiza, Marisol Arevalo, Diana Ayala, Maechelle Brown, Noemi Covarrubias, Desteny Flores, Elizabeth Hernandez, Heidi Holguin, Melissa Lomenzo, Vanessa Lozano, Dora Luna, Melissa Lucht, Romelia Mancillas, Benny Morales, Miranda Noriega, Melissa Ramon, Ashley Smith, Matthew Solorzano, Kerry Stavert Wooten, Brittney Strand, Marysol Thomas, and Sean Van Gundy (collectively, Plaintiffs). On September 23, 2021, the District allegedly approved a resolution requiring its employees to be vaccinated for COVID-19. Plaintiffs' Christian faith allegedly precludes them from receiving COVID-19 vaccination because the currently available COVID-19 vaccines allegedly manipulate genetic operations, allegedly defile the body, and were allegedly developed and produced from, tested with, researched on, or otherwise connected with fetal cell lines from aborted fetuses. Plaintiffs allegedly requested religious accommodations excusing them from complying with the vaccine requirement. The District allegedly denied Plaintiffs' requests for accommodations and terminated them.

On March

3, 2022, Plaintiffs filed the Complaint.

On November 14, 2022, Plaintiffs filed the operative Third Amended Complaint, alleging causes of action for (1)–(3) religious discrimination in violation of Government Code section 12940 et seq. and (4) retaliation in violation of Government Code section 12940 et seq.

On

January 23, 2026, the court conducted an informal discovery conference. On May 5, 2026, Plaintiffs filed these motions to compel further responses. On May 12, 2026, the court conducted another informal discovery conference. On June 11, 2026, the District filed the

opposition, and on June 22, 2026, Plaintiffs filed the reply.

The

motions are set for hearing on June 29, 2026.

ANALYSIS

Plaintiffs

move to compel the District's further responses to Form Interrogatories – Employment (Set One), Interrogatory No. 216.1.

For the following reasons, the court DENIES the motions.

Legal

Standard

A

party may file a motion compelling further production if it deems the responses are inadequate, incomplete, or evasive, or an

objection in the responses is without merit or too general. (Code Civ. Proc., § 2031.310.) The motion shall be accompanied with a meet

and confer declaration. (Code Civ. Proc., § 2031.310, subd. (b).) To prevail, the moving party must first offer specific facts demonstrating “good cause justifying the discovery sought by the demand.” (Code Civ. Proc., § 2031.310,

subd. (b)(1).) This burden “is met

simply by a fact-specific showing of relevance.” (TBG Ins. Services Corp. v. Super. Ct.

(2002) 96 Cal.App.4th 443, 448.) If

“good cause” is shown by the moving party, the burden shifts to the responding

party to justify their responses and any objections made. (Kirkland v. Super. Ct. (2002) 95

Cal.App.4th 92, 98.)

Discussion

The

court notes that there are two motions, one from Thuy Monge and one from all other plaintiffs. Since the two motions and

their supporting briefs are identical, the court considers the two motions together.

As

a preliminary matter, the District argues that the motions to compel are

untimely. The court agrees.

The

party propounding interrogatories waives any right to compel a further response unless they give notice of a motion to compel further response within forty-five (45) days of the service of the verified response, or any supplemental verified response, or any later date the parties have agreed in writing. (See Code Civ. Proc., § 2030.300, subd. (c).)

The

District served its initial verified response to Interrogatory No. 216.1 on October 7, 2025. (See Tisi Decl., ¶ 3.) The District extended Plaintiffs' time to file a motion to compel further responses to December 29, 2025. (See NOL, Exh. 1; see also Tisi Decl., ¶ 4.) The District voluntarily provided a supplemental response given the express understanding that it did not extend the time for Plaintiffs' to file a motion to compel further responses. (See NOL Exh. 2, where the District represents that it will "voluntarily provide a further supplemental response to Form Interrogatory No. 216.1 as stated, despite the fact that Plaintiffs' time to file a Motion to Compel has long since expired . . . with the express understanding that by doing so, the time to file a Motion to Compel further supplemental responses is not re-opened or extended"; see also NOL, Exh. 3, where Plaintiffs represent that "the service of a supplemental response to Form Interrogatory No. 216.1 shall not, by itself, operate to revive or extend any deadline to move to compel with respect to the previously served responses. . . .")

On

this record, Plaintiffs' should have filed their noticed motions by December 29, 2025. There is no evidence before the court that the District granted Plaintiffs an extension of time beyond December 29, 2025. Plaintiffs did not file their motions until May 5, 2026. As such, the court finds Plaintiffs waived their right to compel further responses under Code of Civil Procedure section 2030.300, subdivision (c).

Therefore,

the court DENIES the motions to compel further responses as untimely.

Further,

even if the court finds that the motions were timely, Plaintiffs failed to meet their burden on the motions under Code of Civil Procedure section 2031.310. As discussed above, the initial burden on a motion to compel further discovery is on the moving party to demonstrate good cause justifying the discovery before the burden shifts to the opposing party to justify its responses and objections. (Code Civ. Proc., § 2031.310, subd. (b)(1); Kirkland, supra, 95 Cal.App.4th at 98.) However, the motions and supporting briefs do not argue that Interrogatory No. 216.1 is relevant. (See generally Mot.; see generally Mov. Brief.) Since Plaintiffs did not meet their initial burden to demonstrate good cause for the discovery, the burden would not shift to the District to justify its responses and objections. (See Kirkland, supra, 95 Cal.App.4th at 98.) Thus, the court would have also denied the motions on the merits.

CONCLUSION

For these reasons, the Plaintiffs' motions to compel further responses are DENIED.